Law and Political Science - Structural Correspondence with the Five-Stage Model

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Law and Political Science

Structural correspondence survey with the five-stage model (Ba, Nami, En, Uzu, Taba)

Survey Overview

- **Scope**: Major theories in law and political science
- **Research question**: Do theories in law and political science structurally correspond to the five-stage model?
- **Results**: Strong correspondence 1, Partial correspondence 1, Conditional correspondence 1

Overview of the Five-Stage Model

Stage	Definition
Ba (Field)	An undifferentiated state. Initial conditions where neither direction nor structure has yet been determined
Nami (Wave)	A stage of exploration where multiple directions diverge and compete
En (Edge)	A state of tension where opposing elements coexist without converging to either side. A place where elements meet at boundaries, influence each other, and relationships emerge
Uzu (Vortex)	A stage where new coherence (order) spontaneously arises from within tension
Taba (Bundle)	A stage where form is established and stabilizes as a reusable structure

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Figure 1: Domain — Research Overview Infographic

Overall Structural Correspondence

Temperature	Theory group	Assessment
Strong correspondence	Ostrom commons governance, Habermas deliberative democracy, Rawls theory of justice, Hart primary/secondary rules, constitution-making processes	Correspondence across all five stages is clear, with particularly precise institutional descriptions of En
Partial correspondence	Easton political systems theory, Krasner/Keohane international regimes, multi-tier ADR, transitional justice	Correspondence exists, but attention to cyclicity, non-linearity, and scale differences is needed
Conditional correspondence	Kingdon's policy window	A theory emphasizing the temporality and contingency of En, illuminating an aspect different from stable En

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Key Entry 1: Ostrom's Commons Governance (Ostrom, 1990)

- Elinor Ostrom was a researcher who demonstrated empirically that management of common-pool resources (commons) cannot be reduced to the binary of "state regulation or market privatization." Based on field surveys around the world, she systematically analyzed cases in which user groups create their own rules for monitoring, sanctioning, and dispute resolution. She received the Nobel Prize in Economics in 2009.
- The eight design principles Ostrom identified are conditions common to common-pool resource management institutions that are sustained over the long term: clearly defined boundaries; congruence

Figure 2: Domain — Theory x 5-Stage Correspondence Matrix

between rules and local conditions; collective choice arrangements; monitoring; graduated sanctions; conflict resolution mechanisms; recognition of rights to organize; and nested enterprises.

- **As fact**: Garrett Hardin's 1968 argument, the "tragedy of the commons," held that common-pool resources are inevitably overexploited. Against this, Ostrom demonstrated that instances in which user groups self-organizationally form institutions and sustainably manage common-pool resources exist around the world. The eight design principles are structural conditions commonly observed in successful institutions.
- **As reading**: Here we read the structure in which, under mutual interdependence among users, institutions form themselves with the crisis of overexploitation as the trigger. The level of similarity is structure. The eight design principles function not as an enumeration of individual rules but as design specifications for the relational structure that enables institutions to persist. In particular, "clearly defined boundaries," "conflict resolution mechanisms," and "graduated sanctions" are mechanisms that establish conditions for connection and constraint among actors with different interests, and can be read as components of "En."
- **As interpretation**: The state in which resource dependence exists among users but rules are not yet in place corresponds to Ba. The emergence of overexploitation and free-rider problems corresponds to Nami. The implementation of the eight design principles — monitoring, boundary-setting, conflict resolution arrangements — corresponds to En. The phase in which the local institution becomes established as a governing unit with real effectiveness corresponds to Uzu; and the phase in which the set of operational rules forms the long-term direction of resource management corresponds to Taba. Ostrom also describes the cycle from institutional deterioration to redesign, and the return from Taba to Ba is also within scope.
- What makes this theory important is that the eight design principles are highly concrete as a "design checklist for En." The greatest contribution that law and political science provides to the five-stage model is that it concretizes "En" not as an abstract concept but as verifiable design conditions.

Key Entry 2: Habermas's Deliberative Democracy (Habermas, 1992/1996)

- Jurgen Habermas is a philosopher who developed the theory that the legitimacy of law derives from democratic deliberative procedures. In his major work *Between Facts and Norms*, he places the "discourse principle" — valid action norms are only those to which all affected parties could agree in practical discourse — as the foundation of legal philosophy.
- **As fact**: Habermas proposed the concept of the "ideal speech situation" — conditions under which all participants can participate equally in discourse and reach agreement without coercion. He also describes the structure in which the "tension between facticity and validity" — law has coercive force as fact while simultaneously requiring a basis for legitimacy — drives the dynamics of law. However, Habermas himself also recognizes the conditions under which the ideal and reality diverge: exclusion of participants (de facto exclusion through social inequality), asymmetry of power, intrusion of strategic action, and time constraints.
- **As reading**: Here we read that the design of deliberative procedure conditions functions as a structure supporting the legitimacy of consensus formation. The level of similarity is process, and we particularly focus on the "sequence of exchanging arguments under symmetric participation conditions and converging toward agreement." The conditions of deliberation (equal participation, exclusion of coercion, orientation toward consensus) can be read as a formulation of "under what conditions ideal En is established."
- **As interpretation**: The coexistence of plural opinions in the public sphere corresponds to Ba. The phase in which the tension between facticity and validity makes issues visible corresponds to Nami. The exchange of arguments through deliberative procedures — approximating the ideal speech situation — corresponds to En. The formation of consensus — justification of norms based on the discourse principle — corresponds to Uzu; and institutionalization as a legal institution corresponds to Taba.
- What makes Habermas's theory important is that it formulates the "ideal type of En." The claim that the deliberative conditions themselves generate legitimacy philosophically grounds the proposition that "good procedures generate good results." At the same time, the fact that conditions for divergence between the ideal and reality are made explicit is also important. By showing where the ideal type of En diverges from reality, the limits of the model are illuminated from within.

Key Entry 3: Rawls's Theory of Justice (Rawls, 1971)

- John Rawls is a political philosopher who presented a thought experiment — the "original position" and "veil of ignorance" — for deriving principles of justice. He is the author of *A Theory of Justice*, considered one of the most influential works in twentieth-century political philosophy.
- **As fact**: The "original position" is a hypothetical situation for choosing principles of justice. There, the "veil of ignorance" means that each person does not know their own social position, talents, or conception of the good. Under these conditions, Rawls derived two principles of justice as those rationally chosen: the first principle of equal basic liberties, and the second principle of the difference principle (maximizing the benefit of the least advantaged) and fair equality of opportunity. He further advocated "reflective equilibrium" — the method of mutually adjusting principles and intuitive judgments.
- **As reading**: Here we read the structure of reaching agreement through the mutual adjustment of principles and intuitions under conditions where particular information is blocked (veil of ignorance). The level of similarity is process, and we particularly focus on the "sequence in which choices under information constraints generate convergence toward principles of justice." The original position is a space of possibility in which all existing differences are temporarily bracketed, and it describes the process by which principles are derived from there.
- **As interpretation**: The original position — the undifferentiated state under the veil of ignorance — corresponds to Ba. The comparative and selective pressure among candidate principles of justice corresponds to Nami. Reflective equilibrium — mutual adjustment of principles and intuitions — corresponds to En. Agreement on two principles of justice corresponds to Uzu; and the institutional design of the basic structure corresponds to Taba.
- What makes Rawls's theory important is that it presents a thought experiment that intentionally designs "Ba." The veil of ignorance constructs a fair starting point by intentionally erasing existing differences. This is a philosophical example showing that "Ba is not given but can be designed."

Cross-Cutting Patterns

- The most striking feature across law and political science is the diversity of institutional implementations of "En"
- Ostrom's eight design principles are autonomous En — a relational structure designed by the user group itself
- Second, "creation of Ba" is explicitly thematized
- Third, the Taba→Ba cycle is described in multiple theories

Unresolved Questions

- Whether there is a framework for uniformly describing the diverse types of "En" (autonomous, deliberative, graduated, confluent, institutional, etc.) has not yet been organized. The polymorphism of En that law and political science demonstrates raises the question of how far the definition of En in the five-stage model should be extended.
- How the temporality and contingency of En demonstrated by Kingdon's "policy window" coexists with En as stable institutional design remains unresolved. The finding that En has a time window calls for examination of the temporal dimension of the model.
- The "creation of Ba" demonstrated by constituent power is in tension with the premise of the five-stage model that defines Ba as undifferentiated initial conditions. Whether Ba is given, can be designed, or both requires further examination.
- Habermas's "ideal speech situation" and the divergence from actual power relations raises the methodological question of how to handle the relationship between the five-stage model's "description as ideal type" and "description of actual processes."

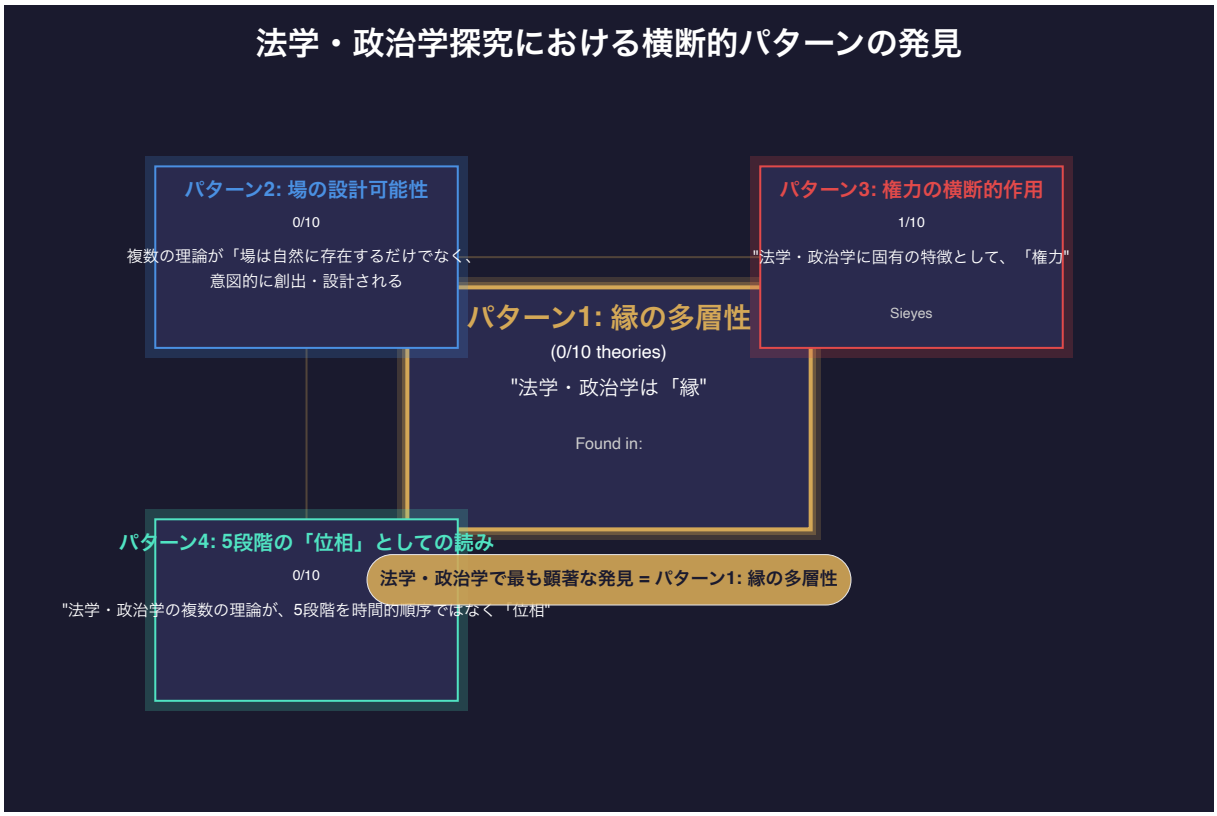

Figure 3: Domain — Cross-Cutting Patterns Diagram

Conclusion

- This survey confirmed that law and political science is a domain with strong overall structural similarity to the five-stage model
- The greatest contributions that law and political science provides to the five-stage model are three
- The findings of this survey are distributed across the near-definitive and probable temperature bands